IN THE SUPREME COURT OF INDIA

INHERENT POWERS & CRIMINAL SETTLEMENT JURISDICTION

(Full Bench (3 Judges))

CASE NUMBER: SLP (Crl.) No. 8989 of 2010 **CNR: SCIN010089892010**

REPORTABLE CITATION: (2012) 10 SCC 303 DATE: September 24, 2012

CORAM: Hon'ble R.M. Lodha, T.S. Thakur, Anil R. Dave, JJ.

Gian Singh v. State of Punjab and Another

Gian Singh ...PETITIONER(S)

VERSUS

State of Punjab and Another ...RESPONDENT(S)

HEADNOTE & STATUTORY PROVISIONS CONSIDERED

Acts: Code of Criminal Procedure, 1973, Indian Penal Code, 1860 | Sections: Section 482 CrPC, Section 320 Cr

Three-Judge Bench upholding the inherent power of the High Court under Section 482 CrPC to quash criminal proceedings in non-compoundable offences having predominantly civil or personal character upon genuine compromise. If both sides in a private or commercial dispute have settled their grievances peacefully, the High Court can quash the criminal case even if the offence is officially non-compoundable.

RATIO DECIDENDI & BINDING LEGAL PRINCIPLE

The power of the High Court in quashing a criminal proceeding or FIR or complaint in exercise of its inherent jurisdiction is distinct and different from the power given to a criminal court for compounding the offences under Section 320 of the Code. In offences arising from commercial, financial, mercantile, civil, partnership or such like transactions or the offences arising out of matrimony relating to dowry, etc. or family disputes where the wrong is basically private or personal and parties have resolved their dispute, the High Court may quash proceedings.

FINAL JUDICIAL DISPOSITION

DISPOSITION: Quashing on Amicable Compromise Affirmed (Outcome: Clarified)

Precedential Authority: Good Law (Binding 3-Judge Precedent)

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